MERON MATEWERE
versus
FIRST TRANSFERE SECRETARIES (PVT) LTD

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE at 08 SEPTEMBER 2025

Summons Commencing Action

Plaintiff in person
W. Diarra, for the defendant

MAMBARA J:

[1] This is the judgment following the full trial of a civil claim in which the plaintiff seeks delivery of 77,235 Class "A" shares in Econet Wireless (Pvt) Ltd, or payment of their value, together with costs of suit. The plaintiff's case is that the defendant, a share transfer secretaries company, wrongfully dealt with and disposed of his shares without authority. The defendant denies any wrongdoing and raised two special defences – prescription and *res judicata* – contending that the claim is time-barred and that the matter was already decided in prior proceedings. After the close of the plaintiff's case, the defendant applied for absolution from the instance, which application was dismissed in a detailed interlocutory judgment (*Matewere* v *First Transfer Secretaries (Pvt) Ltd* HH 384-25). The trial then proceeded to completion with the defence case. This Court must now determine the matter on the merits, addressing all the issues that were referred to trial.

[2] The factual background can be summarized as follows. The plaintiff was formerly employed by Econet Wireless (Pvt) Ltd, and upon termination of his employment he entered into a Deed of Settlement with that company in 2015. In terms of that Deed, the plaintiff was allocated 77,235 Class "A" shares in Econet Wireless (Pvt) Ltd, with a restriction that the shares were "ring-fenced" and could not be dealt with for a period of 24 months, and that no alteration or disposal of the shares would be done without the plaintiff's authority. It is common cause that the defendant, First Transfer Secretaries

(Pvt) Ltd, is the share transfer agent for the Econet group of companies. Sometime after the Deed of Settlement, a corporate exercise took place within the Econet group wherein certain shares were to be allotted or transferred to retrenched employees. The plaintiff maintains that he was never an employee of Econet Wireless Zimbabwe Ltd (an entity in the Econet group) and thus should not have been subject to any share buy-back or disposal scheme related to that entity. Nonetheless, it appears the plaintiff's name was included on a list of persons whose shares were to be processed under a share disposal program initiated by Econet Wireless Zimbabwe or its holding company. The defendant's role was to act on the instructions of its principal (the Econet entity) in administering the shares – issuing share certificates, effecting transfers, and paying out sale proceeds as needed.

[3] In June 2017, the plaintiff himself set in motion the events leading to the sale of his shares. The evidence revealed, and it is largely undisputed, that on or about 12 June 2017 the plaintiff contacted the defendant's Managing Director by telephone, inquiring about how to sell his Class "A" shares. He was advised of the necessary procedure: he would need to provide a written confirmation (via email) instructing the sale and supplying his banking details, and any sale would be subject to approval by the defendant's principal (Econet). The plaintiff proceeded to send an email on 12 June 2017 to the defendant, confirming his instructions to dispose of the shares and providing his bank account details for the deposit of the proceeds. He even included a forwarded SMS code as part of this communication, consistent with security protocols. This email (together with the embedded details) was produced in evidence as Exhibit D1. Upon receipt of the plaintiff's written instruction, the defendant forwarded it to its operations department for processing. The sale was duly executed with the approval of Econet, and on 23 June 2017 the plaintiff's shares were sold. A payment advice slip dated that day (Exhibit D2) shows that the net proceeds of the sale were deposited into the plaintiff's bank account ending **0031, exactly as per the details he had provided. It is not disputed that the plaintiff received the payment for the shares on that date.

[4] For a time, the matter seemed closed. However, a few months later, the plaintiff reappeared with a complaint. By late 2017, the share price of Econet had risen significantly, and the plaintiff was aggrieved that his shares had been sold at a lower price in June 2017. He telephoned the defendant's Managing Director again, essentially

inquiring whether he could somehow benefit from the subsequent increase in share value despite having already sold his shares. The defendant's representative explained that the sale had been finalised pursuant to the plaintiff's own instructions, and that share transactions operate on a willing-seller-willing-buyer basis at the market value on the day of sale; once the shares were sold and he was paid, there was no going back on the transaction. Unsatisfied, the plaintiff escalated his grievance to the defendant's principal (Econet) but received the same answer – the shares had been sold properly on his instruction and the matter was closed.

[5] The plaintiff then turned to litigation. In 2018, he sued Econet (along with another related party) in the High Court under case HC 10299/18, essentially seeking to recover the same shares or their value. The defendants in that case – which by all indications included an Econet company (and, the evidence suggests, possibly the present defendant as well) – defended the claim. In a judgment delivered by CHITAKUNYE J, HH 585-19 on 14 August 2019, the High Court dismissed the plaintiff's claim, finding that the sale of the shares had been carried out lawfully pursuant to the plaintiff's own authorization. In that judgment, the Court made specific factual findings that have a direct bearing on the present matter: it recorded that the plaintiff had personally initiated the disposal of his shares by authoring the email instruction of 12 June 2017 and that he had received full payment as of 23 June 2017. The Court found that the plaintiff's later claim to entitlement of the shares was *mala fide* – indeed, CHITAKUNYE J described the plaintiff's conduct as "unbecoming and reprehensible," amounting to an abuse of process by attempting to reclaim shares that he himself had directed to be sold. The plaintiff's appeal to the Supreme Court was dismissed, leaving the High Court judgment intact.

[6] Notwithstanding the outcome of the 2018 litigation, the plaintiff instituted the present proceedings in July 2020, this time directing his claim against First Transfer Secretaries (Pvt) Ltd (the share transfer agent) as the sole defendant. He contends that the defendant acted wrongfully and in breach of duty by processing the sale of his 77,235 shares. At the Pre-Trial Conference, the parties agreed on six issues for determination at trial, namely:

(1) whether the plaintiff authorized the defendant to deal in (sell or transfer) his Class "A" Econet Wireless (Pvt) Ltd shares;

(2) whether the defendant failed to exercise due diligence and was negligent in selling those shares;

(3) whether the defendant misrepresented to Econet Wireless (Pvt) Ltd in relation to the shares;

(4) whether the defendant is bound by the Deed of Settlement between the plaintiff and Econet Wireless (Pvt) Ltd;

(5) whether the plaintiff's claim is prescribed; and

(6) whether the claim is *res judicata*. I shall address each of these issues in turn.

Issue 1: Authorization to Deal in the Shares

[7] The first issue is fundamental. The plaintiff's case is that he never authorized the defendant to deal in his Class "A" shares – in other words, that the sale was done without his knowledge or consent. The defendant, conversely, maintains that the plaintiff expressly authorized the sale, as evidenced by his communications in June 2017. The resolution of this factual dispute lies in the evidence led at trial, viewed against the backdrop of the prior proceedings.

[8] On a balance of probabilities, it is abundantly clear that the plaintiff *did* authorize the sale of his shares. The plaintiff's own testimony on this point was evasive and self-contradictory. He initially tried to deny ever instructing the sale, claiming that an email had been sent without his approval. However, under cross-examination he was confronted with the contemporaneous records and with his admissions in the earlier court case. He ultimately conceded that he was indeed the author of the critical email instruction. The documentary evidence leaves little room for doubt: the email dated 12 June 2017 originated from the plaintiff, contained his personal banking details, and was followed by the successful deposit of proceeds into his bank account on 23 June 2017. It is implausible that such an email and transaction could have been effected without the plaintiff's involvement, especially given that he made a phone inquiry to the defendant the very day the email was sent. The High Court's prior judgment (HH 585-19) explicitly found that the plaintiff gave the instruction and was paid in full, and nothing in the evidence before me casts any doubt on that finding. If anything, the testimony of the defendant's witnesses – Mr. Tanaka Musiiwa (the Managing Director) and Mr. Zivanai Mazhandu (the Operations Manager) – corroborated in detail how the plaintiff initiated and consented to the sale. They recounted how the plaintiff contacted them, how he was advised of the procedure, how he complied by sending the written authorization, and how

the defendant then carried out the sale as instructed. I find their evidence credible and consistent with the contemporaneous documents.

[9] The plaintiff's contention that the email "did not emanate from him" is unsustainable. He did not produce any evidence of hacking or forgery, nor did he call any expert witness to suggest that the instruction was fabricated. In fact, when pressed on the point, he could not explain who else could have sent an email in his name with his own bank details and then managed to withdraw the money from the bank after the shares were sold. His only explanation for the incriminating evidence was to insist that he was "surprised" to learn of the sale after the fact. But as was noted in the prior judgment, this claim of surprise rings hollow in the face of his demonstrated involvement. In sum, the Court is satisfied that the plaintiff personally authorized the defendant to deal in his shares. Issue (1) is therefore answered in the affirmative: the plaintiff gave the defendant authority to sell his Class "A" Econet Wireless (Pvt) Ltd shares.

Issue 2: Alleged Lack of Due Diligence / Negligence by the Defendant

[10] The second issue is whether the defendant failed to exercise due diligence and negligently sold the plaintiff's shares. The plaintiff alleges that even if he did not authorize the sale (a contention which, as found above, is contrary to the evidence), the defendant breached its duty of care by failing to verify the authority to sell and by generally handling the transaction improperly. In examining this issue, one must consider what duty the share transfer secretaries owed and whether there was any departure from the standard of care expected in processing the share transfer.

[11] The facts show that the defendant acted with the reasonable care and diligence expected of a professional transfer secretaries' firm in these circumstances. First, as established, the defendant received what appeared to be a clear and direct instruction from the shareholder himself. The plaintiff had gone so far as to call the defendant's office to set the sale in motion, and then provided a written email instruction with all necessary particulars. The defendant was entitled to rely on such an instruction, coming from the registered shareholder and meeting the verification requirements. Indeed, the defendant did not blindly act on a mere phone call or an ambiguous signal – it insisted on a written confirmation via email, complete with the shareholder's banking information and a verification code (the forwarded SMS). This demonstrates a deliberate exercise of due

diligence, aimed at ensuring that the request was genuine and properly authorized. It is telling that the plaintiff's own actions satisfied those verification steps at the time.

[12] Second, the defendant processed the sale in accordance with the established protocol. The instruction was forwarded to the operations department and then executed after obtaining the principal company's approval. Payment was made through normal banking channels into the plaintiff's account. The plaintiff's grievance is not that the defendant failed to pay him (he in fact received the funds), but rather that the shares were sold at a price he later found unfavourable. That, however, is not a result of any negligence; market fluctuations are beyond anyone's control, and a seller cannot retrospectively fault an agent for executing a sale at the going market price simply because the price rose thereafter. The defendant's witnesses explained that share sales for these Class "A" shares are done on a "willing seller, willing buyer" basis at the day's value. The plaintiff was a willing seller on 12–23 June 2017, and the fact that he later regretted selling does not translate into negligence on the part of the facilitator of that sale.

[13] The plaintiff raised an argument that the sale was carried out illegally because the defendant allegedly lacked a stockbroker's licence. I find this argument to be without merit both in fact and in law. The evidence showed that the Class "A" shares in question were not listed on any public stock exchange; they were a form of restricted equity specific to Econet's internal share schemes. Thus, their sale did not require the engagement of a licensed stockbroker or trading through a formal exchange. The defendant, as the duly appointed transfer secretary, was authorized to handle the transfer internally. In doing so, the defendant ensured that all statutory obligations for such a private share transfer were met – for example, stamp duty was paid and a capital gains tax clearance was obtained. No law was violated in the process. The plaintiff did not point to any statutory provision mandating a broker for this kind of transaction. Therefore, this allegation of illegality or negligence on that score is unfounded.

[14] In summary, there is no evidence that the defendant failed to exercise due diligence or was negligent in the sale of the shares. On the contrary, the defendant acted on the express instructions of the rightful shareholder, followed proper procedures to confirm the instruction, and completed the transaction in a regular manner. There was no breach of any duty owed to the plaintiff. Issue (2) is accordingly answered in the negative: the

defendant did not act negligently and did not fail in its duty of care in the sale of the shares.

Issue 3: Alleged Misrepresentation to Econet Wireless (Pvt) Ltd

[15] The third issue is whether the defendant misrepresented *to Econet Wireless (Pvt) Ltd* that it had authority or basis to sell the shares (or any related misrepresentation). The plaintiff's pleadings and evidence on this issue were somewhat diffuse. He seemed to allege that the defendant mischaracterized the situation to his former employer (Econet Wireless (Pvt) Ltd), perhaps by pretending that the shares were part of a generic retrenchment share buy-back scheme or that the plaintiff had agreed to a buy-back, thereby inducing Econet Wireless (Pvt) Ltd to allow the sale. It is not entirely clear what specific misrepresentation was alleged, as no particular communication from the defendant to Econet (Pvt) Ltd was identified as false.

[16] After considering the evidence, I find that the plaintiff failed to prove any misrepresentation by the defendant to Econet Wireless (Pvt) Ltd (or to any other entity, for that matter). The defendant's witnesses testified that their role was simply to receive and act on instructions given by their principal (Econet) and by the shareholder. There was no independent representation made by the defendant to anyone regarding the plaintiff's shares; the defendant merely executed the transfer as instructed. It is important to note that Econet Wireless (Pvt) Ltd itself was not directly involved in the transaction at that stage. The evidence suggests that the instructions to allot and later to transfer the Class "A" shares came from Econet's holding company or Econet Wireless Zimbabwe Ltd – essentially, from within the Econet corporate group that was managing the share scheme. Thus, the defendant was dealing with Econet group representatives who already had decided to facilitate the share disposals. There was no need for the defendant to make any representation to Econet Wireless (Pvt) Ltd, because any necessary approval or authority to sell was handled internally by Econet's relevant corporate organs (who were fully aware of what was being done).

[17] The plaintiff did not produce any document or witness to show that the defendant communicated false information to Econet Wireless (Pvt) Ltd. For instance, if the plaintiff's theory was that the defendant told Econet (Pvt) Ltd that the plaintiff had agreed to a buy-back (when he had not), there is simply no evidence of such a communication. On the contrary, what the defendant communicated up the chain was the plaintiff's own

instruction to sell. The internal records (such as the share transfer form and the list of retrenchees) reflected that the plaintiff's shares were to be sold as part of the scheme, but these records were consistent with the plaintiff's actual participation (voluntary or otherwise) in that scheme. The plaintiff's name appeared on the list of persons whose shares were to be disposed, and this list would have originated from the Econet group itself. The defendant had no reason or duty to second-guess that list or to make representations about it.

[18] In sum, the misrepresentation alleged by the plaintiff is not supported by any credible evidence. The Court cannot speculate in the air. I find that the defendant did not misrepresent anything to Econet Wireless (Pvt) Ltd. Issue (3) is answered in the negative.

Issue 4: Is the Defendant Bound by the Deed of Settlement?

[19] This issue asks whether the defendant is bound by the terms of the Deed of Settlement between the plaintiff and Econet Wireless (Pvt) Ltd (his former employer). The Deed, as noted, provided that the 77,235 Class "A" shares allocated to the plaintiff were not to be dealt with for 24 months and that no alteration or disposal could occur without the plaintiff's consent. The plaintiff's argument was that the defendant, in facilitating the sale of the shares (especially if done within the 24-month period), violated the Deed of Settlement and is thus liable. The defendant's position is that it was not a party to that Deed, was unaware of its specific terms at the relevant time, and in any event acted with the plaintiff's consent (thus not contravening the spirit of the Deed).

[20] As a matter of law, the defendant was not a party to the Deed of Settlement and is not directly bound by it. The Deed was a contract between the plaintiff and Econet Wireless (Pvt) Ltd, conferring certain rights and obligations upon those two parties. The defendant, First Transfer Secretaries, is a separate entity that had no involvement in the formation of that contract. It is elementary that contracts bind the parties to them and (save for exceptional circumstances not present here) do not impose obligations on third parties. The plaintiff did not plead or prove any basis on which the defendant could be said to have assumed a duty to abide by the Deed's terms absent direct knowledge or privity. Indeed, the evidence of the defendant's officers was that they only became aware of the Deed of Settlement much later, when this dispute arose, and that prior to that, the existence or content of the Deed was not communicated to them. It was simply outside their remit – their job was to act on the instructions given by their principal and the

shareholder of record, without delving into the personal agreements that might exist between those two.

[21] Furthermore, even if one were to assume for argument's sake that the defendant ought to have observed the Deed's restriction, the factual reality is that the defendant did not violate the core term of the Deed. The Deed's prohibition was against dealing in the shares without the plaintiff's authority during the first 24 months. In this case, the sale of the shares was done with the plaintiff's express authority, as established under Issue (1). The mischief that the Deed sought to prevent was an involuntary disposal of the shares or a unilateral alteration of the plaintiff's shareholding by the company. That did not happen here; the plaintiff voluntarily chose to dispose of his shares. In effect, the very condition the Deed imposed – the necessity of the plaintiff's consent – was satisfied. Thus, even viewing the defendant as an extension of the company for a moment, there was no breach: the plaintiff's own consent was obtained and acted upon.

[22] It is also relevant that by the time the shares were sold in June 2017, the 24-month lock-in period was, or was about to be, expiring (depending on the exact date of the Deed in 2015). Regardless of the precise timing, the controlling factor is that the plaintiff himself initiated the transaction. Therefore, the plaintiff cannot approbate and reprobate – he cannot claim the benefit of the Deed's protection while simultaneously having waived that protection by giving his consent for the sale.

[23] I conclude that the defendant is not bound by the Deed of Settlement in the sense contended by the plaintiff. The Deed did not impose any actionable obligation on the defendant, and in any event the defendant's actions did not contravene the Deed's terms as the plaintiff's authority was obtained. Issue (4) is answered in the negative.

Issue 5: Prescription

[24] The defendant pleaded that the plaintiff's claim is prescribed. In our law, prescription is governed by the Prescription Act [*Chapter 8:11*]. In terms of that Act, the general prescriptive period for an ordinary civil debt or claim is three years. A "debt" is broadly defined to include an obligation arising from contract, delict or otherwise, and it is settled that a claim for the delivery of shares or for damages representing their value falls within the ambit of a "debt" that can prescribe. Prescription begins to run when the debt becomes due – meaning when the cause of action is complete and the creditor (plaintiff) is able to institute proceedings – and the clock can be delayed only if the creditor is unaware of the

identity of the debtor or of the facts giving rise to the claim, and such lack of knowledge is not due to the creditor's own negligence (Prescription Act, s. 16(3)). Furthermore, if prescription is interrupted by the service of legal process, but that process is later set aside or does not result in a final judgment in favour of the creditor, the interruption is deemed not to have occurred (Prescription Act, s. 19(3).

[25] Applying these principles to the present case, the plaintiff's claim is indeed prescribed. The cause of action arose, at the very latest, by 23 June 2017, when the shares were sold and the plaintiff received the proceeds. By that date, all the facts necessary to institute the claim were within the plaintiff's knowledge – he knew that he no longer held the shares, he knew who had facilitated the transfer (the defendant), and he knew that he had been paid off (albeit to his later dissatisfaction). In truth, the cause of action arguably arose on 12 June 2017 when he gave the instruction to sell, or on 23 June 2017 when the sale was executed; either way, mid-2017 is the operative time. The plaintiff filed the summons commencing this action on 20 July 2020. That is slightly beyond the three-year mark from June 2017. On the face of it, therefore, the claim had prescribed.

[26] The plaintiff attempted to avert this conclusion by arguing that he only became fully aware of the wrongful nature of the sale in 2018, and that the defendant cannot invoke prescription because it "was never a party to the Deed of Settlement". Neither argument has merit. As to the plaintiff's knowledge, the evidence overwhelmingly showed that the plaintiff was aware in 2017 that his shares had been sold – indeed, he orchestrated it and then immediately complained when the price went up thereafter. There were no hidden facts that came to light later. The plaintiff's suggestion that an internal email or some corporate detail emerged in 2018 which alerted him to a fraud does not hold water; he did not identify any specific new fact discovered in 2018 that he did not already know. In any event, by 2018 he had already instituted the earlier lawsuit over the same shares, confirming that he believed he had a cause of action at that time. Thus, even if we generously took 23 June 2017 as the start of the clock, the three-year prescription period would ordinarily expire by 23 June 2020. The plaintiff's summons was issued a month after that. The grace period provided by law (if any) does not extend so far as to cover clear knowledge accompanied by inaction beyond three years. Section 16(3) of the Act, which delays prescription until the creditor is aware of the identity of the debtor and the facts giving rise to the debt, does not assist the plaintiff here: he knew the identity of the

defendant and the facts in 2017. Constructive knowledge is sufficient under the Act – if a reasonable person in the plaintiff's position would have known the facts, prescription runs. Here, the plaintiff had actual knowledge, so there is no need even to impute constructive knowledge.

[27] The plaintiff's other point – that the defendant was not party to the Deed of Settlement and therefore "cannot invoke prescription" – is a misstatement of the law. The running of prescription is not predicated on any relationship under the Deed of Settlement; it is a legal timeframe for litigating claims. The fact that the defendant was not party to the Deed is irrelevant to whether the claim against it has prescribed. What matters is that the plaintiff had a claim (sounding in delict or perhaps contract) against the defendant for allegedly wrongfully causing loss of his shares, and that claim became actionable once the shares were sold without being recovered. The clock for that claim does not depend on the Deed, it depends on when the wrongful act and damage occurred and were known.

[28] Finally, I consider the effect of the earlier proceedings (HC 10299/18) on prescription. The plaintiff filed that prior action in 2018, well within three years of the cause of action, which ordinarily would interrupt prescription by the service of process. However, that case was dismissed on the merits and did not result in the plaintiff obtaining the relief he sought. In terms of section 19(3) of the Prescription Act, when a summons is dismissed and does not result in a final judgment in favour of the claimant, the interruption of prescription by that process is deemed not to have occurred. In other words, one cannot keep a claim alive in perpetuity by repeatedly filing and losing lawsuits. The effect here is that prescription continued to run through the 2018-2019 period and beyond, such that by the time the plaintiff started afresh in 2020, the three-year period had lapsed.

[29] I am mindful that prescription, if successfully invoked, is a complete defence that would independently dispose of the case. The defendant has discharged the onus of proving the prescription period elapsed in this matter. The claim is extinguished by operation of law due to prescription. Issue (5) is answered in the affirmative: the plaintiff's claim is prescribed.

Issue 6: Res Judicata

[30] The sixth issue is whether the plaintiff's claim is *res judicata*. The doctrine of *res judicata*, literally, "a matter adjudicated," prevents a party from re-litigating a matter that

has already been finally decided by a competent court. The requirements for a successful plea of *res judicata* in the classic sense are that the earlier judgment was between the same parties or their privies, concerned the same cause of action, and the same subject matter. The underlying rationale is encapsulated in the maxims *nemo debet bis vexari pro una et eadem causa* (no one should be twice troubled for the same cause) and *interest rei publicae ut finis litium sit* (it is in the public interest that there be finality to litigation). Even where the strict tripartite requirements are not all met, our law, following common law development, recognizes the concept of *issue estoppel*, a species of *res judicata*. Issue estoppel can apply to bar re-litigation of specific issues of fact or law that were necessarily decided in earlier proceedings between the same parties or their privies, even if the cause of action or form of the proceedings is different. What is crucial is that the party against whom the plea is raised had a full and fair opportunity to litigate the issue previously, and that a final judgment on that issue was rendered.

[31] In the present case, there is no doubt that the subject matter of the dispute – the 77,235 Class "A" shares and their disposal in 2017 – is identical to that in the 2018 case. The plaintiff himself admitted during cross-examination that the same shares and effectively the same relief were at stake in both cases. The cause of action is also essentially the same: the plaintiff's complaint then, as now, was that his shares had been improperly taken from him and sold, and he wanted either the shares restored or compensation. In HC 10299/18 he sought to undo the sale and reclaim his shares or value, and he is seeking the very same outcome here, albeit directing blame at a different defendant. Substantively, this is the same cause of action being pursued a second time.

[32] The only facial difference is in the identity of the defendant. In the 2018 case, the defendants were Econet Wireless Zimbabwe Ltd and perhaps Econet Wireless (Pvt) Ltd (the record is not crystal clear on whether First Transfer Secretaries was formally cited; the High Court judgment is captioned under the Econet entities). In the present case, the defendant is First Transfer Secretaries (Pvt) Ltd. The plaintiff argues that because the defendant was not cited in the first case, the doctrine of *res judicata* cannot apply – essentially, that he is now suing a different party. The question, then, is whether First Transfer Secretaries can be considered the "same party" as the Econet entities for the purposes of *res judicata*, or at least a privy of those parties such that issue estoppel would bind the plaintiff.

[33] Our courts have long held that a party cannot escape the *res judicata* net by simply changing the guise of the opposing party if in reality that new party's interests are identical to, and in privity with, the original party. GUBBAY JA observed in *Wolfenden* v *Jackson* 1985 (2) ZLR 313 (S) at 316B-C that the *exceptio rei judicatae* is based on public policy and that the court will look to the substance rather than technical differences in parties where justice and finality so demand. Similarly, in *Mazibuko* v *Santam Insurance Co Ltd* 1982 (3) SA 125 (A) at 133H, the South African Appellate Division (often cited with approval in our jurisdiction) noted that the court must guard against a litigant vexing an opponent multiple times under the guise of different causes or parties when the essential issue remains the same. The doctrine extends to cover those who are in privity with the original parties – for example, agents, principals, successors-in-title, or parties with a direct derivative interest in the subject matter. The key inquiry is whether the second defendant's legal rights and interests in respect of the subject matter are so closely connected to the first defendant's that it would be unfair and contrary to public policy to allow the matter to be re-opened.

[34] In *casu*, I am satisfied that the differences in the cited defendants are purely nominal and that the defendant in this case is, for *res judicata* purposes, in privity with the defendants in the previous case. The plaintiff's 2018 lawsuit was effectively an attack on the validity of the share sale transaction. That transaction involved three main actors: (a) the plaintiff as the selling shareholder; (b) the Econet corporate entity (or entities) as the party authorizing and benefiting from the share buy-back/disposal scheme; and (c) the defendant First Transfer Secretaries as the intermediary facilitating the transfer. In the prior case, the Court conclusively found that the transaction was lawful and that the plaintiff had no claim, implicitly exonerating all actors involved in carrying out the sale. First Transfer Secretaries may not have been named in the caption of that case (though the evidence suggests the company's role was extensively canvassed and its actions defended in tandem with Econet's position). Regardless, the defendant's role was entirely on behalf of the Econet principal; it did nothing on its own accord, but acted as an agent carrying out Econet's instructions and the plaintiff's request. In this sense, the defendant's legal position is entwined with that of Econet. To hold the defendant liable now would contradict and undermine the previous judgment which held that the sale was above-board and that the plaintiff's rights were not violated by that sale. The law does not

permit such an indirect collateral attack on a final judgment by shifting blame to the agent of a previously exonerated party.

[35] Moreover, even if one were to hesitate on treating the parties as the same, the doctrine of issue estoppel clearly applies. The previous High Court judgment (HH 585-19) made specific findings of fact that are fatal to the plaintiff's present claim – notably, that the plaintiff himself initiated the sale and that he was paid for the shares. Those findings were necessary for the decision and were upheld on appeal. The plaintiff had his day in court to challenge the circumstances of the share sale; he called evidence (indeed he testified on his own behalf in that case as well) and the court determined the truth of the matter. It would offend common sense and justice to allow the plaintiff to relitigate those very facts simply by targeting a different defendant. As was pointed out in *Wolfenden* v *Jackson* (*supra*), once a material issue of fact has been determined in earlier litigation between the same parties or their privies, neither of them can be allowed to assert the contrary in subsequent proceedings. The plaintiff is attempting to do exactly that – he wants this Court to find that he did not authorize the sale, when that issue was already decided adversely to him in 2019. He wants this Court to find the sale was invalid, when a competent court has already found it was valid. This is precisely what the doctrines of cause of action estoppel and issue estoppel are designed to prevent.

[36] The plaintiff's only rejoinder is that First Transfer Secretaries was not a party to the first case, and thus he argues it is a "new" cause. But as I have explained, that is a distinction without a difference in the context of this dispute. One cannot dodge the *res judicata* rule by the clever expedient of switching adversaries if the switched adversary's liability is entirely dependent on re-proving the same facts and wrongs that were alleged (and disproven) before. Our courts have even warned against such artful re-litigation. In *Willowvale Mazda Motor Industry (Pvt) Ltd* v *Sunshine Rent-A-Car (Pvt) Ltd* 1996 (1) ZLR 415 (SC), the Supreme Court endorsed the application of issue estoppel, emphasizing the need to avoid duplicative litigation over settled issues. And in *Galante* v *Galante* 2002 (1) ZLR 144 (HC), the High Court similarly noted that a party should not get a second bite at the cherry on a matter already decided, even if the second bite is presented in a different wrapper.

[37] I therefore hold that the plaintiff's claim is *res judicata*. The prior judgment on the merits (HH 585-19) stands as a final pronouncement on the essential aspects of this

matter, binding the plaintiff. The defendant in *casu*, being in privity with the prior defendants, is entitled to the benefit of that judgment. Issue (6) is answered in the affirmative.

Conclusion and Disposition

[38] In light of the foregoing findings, the plaintiff's case cannot succeed. By authorizing the sale of his shares, the plaintiff himself set in motion the events he now complains of; there was no wrongful conduct by the defendant. The defendant did not breach any duty or mislead anyone, and it acted within the scope of a lawful mandate. Additionally, the claim is defeated by two formidable legal bars: prescription and *res judicata*. Each of those defences independently warrants dismissal of the claim, and together they emphatically confirm that this litigation is both untimely and untenable. It is not lost on the Court that the plaintiff, a self-actor, feels aggrieved by the outcome of his share transaction. However, courts of law decide matters on the evidence and applicable law, not on sympathy. There must be finality. The plaintiff exhausted his remedies in the previous suit, and he cannot resurrect the dispute under a new banner.

[39] Regarding costs, the defendant prayed for costs on a higher scale such as legal practitioner and client scale at one point, arguing that the plaintiff's persistence in re-litigating a settled matter was vexatious. While I have considerable understanding for the defendant's frustration, I am not inclined to depart from the ordinary principle that costs follow the result on the usual scale. The plaintiff appeared in person and, although misguided in pressing this claim, I will not characterize his conduct as malicious to the extent of warranting punitive costs. An award of ordinary costs should suffice to reimburse the successful party's expenses and also serve as a caution to the plaintiff against further ill-founded litigation.

[40] In the result, the plaintiff's claim is dismissed with costs.

MAMBARA J: …….

Coughlan, Welsh and Guest, defendant's legal practitioners